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Case Number: 23STCV09616 Hearing Date: June 25, 2026 Dept: 731

SUPERIOR COURT OF
CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE
RULING

ANITRIA MICHELLE TOMLIN,

Plaintiff,

v.

COUNTY OF LOS ANGELES, et al.,

Defendants.

Case No: 23STCV09616

Hearing Date: June
25, 2026

Calendar Number: 15

Defendants County of

Los Angeles, Kresimir Kovac, Brian Yanagi, and John Burcher move for summary judgment or in the alternative, summary adjudication as to Plaintiff Anitria Michelle Tomlin's First Amended Complaint.

Defendants' motion for summary judgment, or in the alternative, summary adjudication is DENIED in part and GRANTED in part. The motion for summary adjudication is granted as to the third cause of action for conspiracy and denied as to the first cause of action for retaliation.

Background

This is an employment action. On March 29, 2023, Plaintiff Anitria Michelle Tomlin ("Plaintiff") filed a complaint against Defendants County of Los Angeles, Kresimir Kovac, Brian Yanagi, and John Burcher ("Defendants").

On September 19, 2023, Plaintiff filed the First Amended Complaint ("FAC"), alleging causes of action for: (1) whistleblower retaliation in violation of Labor Code section 1102.5 (against County); (2) intentional infliction of emotional distress ("IIED") (against all Defendants); and (3) conspiracy (against Kovac, Yanagi, and Burcher.)

On December 19, 2023, the Court sustained Defendants' demurrer to the second cause of action for IIED, and overruled the demurrer as to Plaintiff's first and third causes of action for retaliation and conspiracy. Thus, only the first and third causes of action are at issue.

The FAC alleges the following. Plaintiff is currently the Operations Lieutenant of the Records and Identification Bureau ("RIB") for the Los Angeles Sheriff's Department.

The RIB provides fingerprint identification services for Los Angeles County law enforcement agencies. The fingerprint process is a 24/7 operation.

When an individual is arrested, the arrestee's fingerprints are taken and uploaded to a central database for verification of the fingerprints. If the fingerprints are not recognized by the system, the fingerprints are forwarded to RIB for review by technicians specially trained by the County to determine whether the fingerprints match the arrestee's name and

photograph. Results that match are then transmitted to the California Department of Justice. As an administrator, Plaintiff is not trained in the identification process. Her role is managerial only.

To protect the public from false identification of a person's fingerprints, the identification process performed by Plaintiff's unit requires two technicians to verify the match and a supervisor to handle any discrepancies between the two verifiers. Each of these positions require technical expertise and specialized skills.

The RIB would operate for consecutive days at times without a supervisor present or with only one fingerprint technician. Starting October 1, 2021, Plaintiff repeatedly reported her concerns about this process to her superiors Kovac and Yanagi, stating that she believed the short staffing violated arrestees' due process rights, caused false identification of a person's fingerprints, and caused fingerprint technicians to offer false expert testimony in trials due to having to explain that the fingerprint identification process mandated two independent verifying technical and a technical supervisor. Further, on September 28, 2021, Plaintiff requested at different times that the operating hours be reduced from 24/7 to 16 hours a day, 5 days a week. Between October 2021 to February 2023, Plaintiff's requests to fund more technical supervisors and to fund overtime were repeatedly by Yanagi.

Due to the long-term medical leave of the Compliance Lieutenant, Plaintiff assumed the duties of the Compliance Lieutenant which encompassed the fingerprint section operating 24/7. From October 2021 through March 2022, Yanagi intentionally rejected Singh's repeated requests to fill the compliance lieutenant vacancy as a form of retaliation. This resulted in Plaintiff performing the additional duties of the Compliance Lieutenant, requiring her to work overtime on weekends and evenings. Plaintiff did not receive paid compensation for the overtime and would only receive saved leave compensation.

From November 2022-January 2023, Yanagi intentionally circumvented a personnel loan agreement made by Singh to allow for the employee who was selected to fill the vacant Assistant Director position as a form of retaliation. Plaintiff therefore also assumed the duties of the vacant Assistant Director position.

On

October 24, 2022, Plaintiff attempted to locate a subordinate manager and learned that she and another subordinate manager had left the floor without notification to upper management and without appointing an acting manager.

On

October 31, 2022, Plaintiff and Singh met with this manager at the manager's request. At the close of the business day, the subordinate manager sent an email to Singh asserting that during the meeting, Singh allowed Plaintiff to bully, harass, and use profanity against her.

On

November 1, 2022, Singh requested to meet with Kovac regarding the disgruntled subordinate manager making false allegations against Plaintiff. Singh was the only witness to the incident and documented in writing to Kovac that the employee's allegations were false. Singh forwarded the e-mail correspondence between her and the disgruntled manager to Kovac who never responded to the e-mail.

On November 1, 2022, a supervisory inquiry was conducted regarding the allegations against Plaintiff. The inquiry consisted of only one interview. Kovac personally interviewed the subordinate manager and determined the allegations were true notwithstanding Singh attesting to the contrary. No other interviews were conducted and no corroborating evidence was produced to substantiate the subordinate manager's allegations. That same day, the Intake Unit was notified of the allegations against Plaintiff. Based on the statements and information provided by the disgruntled subordinate manager and Singh's e-mail disputing the allegations, the Intake Unit determined that there was no evidence to substantiate the allegations that Plaintiff bullied, harassed, or used profanity during a meeting held on October 24, 2022.

On the same day, Kovac and Yanagi met with Singh. Kovac reading from his notes, accused Singh of mistreating the manager and stated that an inquiry was going to be conducted and to be mindful of retaliation. Singh was told to admonish Plaintiff of the same. The following weeks, Singh and Plaintiff were notified that Kovac personally interviewed the disgruntled subordinate. Plaintiff alleges that Kovac was biased against Plaintiff because previously, Plaintiff was the investigator who handled an Internal Affairs Bureau case initiated against Kovac. To date, neither Singh nor Plaintiff have

been contacted regarding the event.

Plaintiff then anonymously filed a County Policy of Equity Complaint against Kovac, alleging retaliation, bias, and disparate treatment. Plaintiff had asserted that Kovac should have recused himself from any involvement regarding allegations against Plaintiff since she had been the investigator who interviewed Kovac for approximately 3 hours when he was under investigation for alleged criminal activity. The County Equity Complaint was referred back to the Sheriff's Department where it was given to Yanagi, who closed it without performing a supervisory inquiry. No interviews were conducted.

Plaintiff overheard a conversation between technical fingerprint personnel and inquired about improper fingerprint identification. Plaintiff was provided with a document that confirmed there were methods to bypass the process when fingerprints were confirmed as matching by the two independent verifiers when no supervision was present.

On January 9, 2023, Plaintiff and Singh met with Burcher to have a discussion about the unethical business practice regarding the fingerprint identification and lack of supervision. The next day, Burcher interacted with Plaintiff and Singh in an adversarial manner and tone. He stated that Singh and Plaintiff would be held responsible for the issues.

On January 13, 2023, Singh spoke with Chief of Staff Jason Skeen and informed him that nothing had been done about the lack of technical supervision. Jason Skeen stated he would file a Policy of Equity Complaint against Yanagi on Singh's behalf. Yanagi had been notified.

On January 20, 2023, Plaintiff received a call on her day off, notifying her that Burcher was going to serve her with a notification that she was the subject of an Internal Affairs Investigation regarding the subordinate manager.

On April 6, 2026, Defendants filed this motion for summary judgment, or in the alternative, summary adjudication. On June 5, 2026, Plaintiff filed an Opposition. On June 12, 2026, Defendants filed a Reply.

Legal Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 843.) In analyzing such motions, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294). “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and ‘uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party.” (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) “If the [opposing party] cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Evidentiary

Objections

Defendant’s Objections to
Plaintiff’s Evidence

While the Court “must” rule on all evidentiary objections made at the summary judgment stage, it is permitted to focus its attention on those which are “important.” (See *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 532; see also Code Civ. Proc., § 437c, subd. (q) [the court need only rule those objections to evidence that were material in the disposition of the MSJ].) The Court did not rely on the evidence Defendant objected to. Thus, the Court declines to rule on these objections.

Request for Judicial Notice

The court must consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court. (Code Civ. Proc., § 437c(c).) Therefore, Defendants’ request is unnecessary and the Court declines to rule on the request.

Discussion

First Cause of Action

for Unlawful Retaliation under Labor Code section 1102.5

Defendants contend that the first cause of action is barred as (1) Plaintiff did not suffer an adverse employment action, (2) there is no evidence that any protected activity was a contributing factor to any alleged adverse employment action, and (3) Defendant had legitimate independent reasons for its actions.

Labor Code § 1102.5 states:

An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.

(Lab. Code, § 1102.5, subd. (b).)

“To establish the first element, the plaintiff must show (1) the plaintiff engaged in protected activity, (2) the defendant subjected the plaintiff to an adverse employment action, and (3) there is a causal link between the two.” (Ross v. County of Riverside (2019) 36 Cal.App.5th 580, 592.)

“[O]nce it has been demonstrated by a preponderance of the evidence that an activity proscribed by Section 1102.5 was a contributing factor in the alleged prohibited action against the employee, the employer shall have the burden of proof to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in activities protected by Section 1102.5.” (Lab. Code, § 1102.6.)

1.

Adverse

Employment Action

“In

California, an employee seeking recovery on a theory of unlawful discrimination or retaliation must demonstrate that he or she has been subjected to an adverse employment action that materially affects the terms, conditions, or privileges of employment.” (McRae v. Department of Corrections & Rehabilitation (2006) 142 Cal.App.4th 377, 386-387 (McRae).) “[T]he plaintiff must show the employer’s actions had a detrimental and substantial effect on [her] employment.” (Ibid.)

“[W]hat constitutes [an adverse employment] action ‘is not, by its nature, susceptible to a mathematically precise test,’ and, as a result, ‘the significance of particular types of adverse actions must be evaluated by taking into account the legitimate interests of both the employer and the employee.’ [Citation.]” (Brown v. Los Angeles Unified School District (2021) 60 Cal.App.5th 1092, 1106.) Viewed broadly, however, our Supreme Court has held that “an adverse employment action must materially affect the terms, conditions, or privileges of employment to be actionable” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1052 (Yanowitz).)

In the FAC, Plaintiff alleges the following

adverse employment actions: (1) Defendants' "sham" investigation of the subordinate manager's complaint against Plaintiff; (2) Defendants' failure to investigate Plaintiff's County Policy of Equity Complaint against Kovac; (3) Defendants' payment of compensatory time off in lieu of cash for overtime; and (4) Plaintiff's assumption of additional job duties.

Defendant argues that the inquiry and investigation of the complaint by Drake, the "subordinate manager," and Defendant's alleged failure to investigate Plaintiff's complaint against Kovac did not constitute legally cognizable adverse employment actions. Defendant argues that being subject to an internal administrative investigation without more has no material impact on Plaintiff's employment.

Defendant also argues that Defendant's alleged failure to investigate her complaint against Kovac also did not constitute an adverse employment action. Plaintiff lodged that complaint on November 15, 2022 and went out on medical leave on or about February 15, 2022 and has remained on leave ever since. (SSUF 19, 25.) It is undisputed that Lt. Lim recommended that Plaintiff's complaint against Commander Kovac be investigated in the same administrative investigation that is will address Drake's allegations against Plaintiff because of the overlapping nature of the allegations. (SSUF 30.) It is also undisputed that the IAB investigation is still not concluded because Plaintiff (and Singh) have been off on a workers' compensation leave of absence since early 2023. (SSUF 18-20.) If or when Plaintiff returns from her medical leave she will be free to discuss her accusations of bias on the part of Commander Kovac in the IAB investigation. (Kopperud Decl., ¶ 7.)

However, Defendant isolates each of Plaintiff's claims of adverse employment actions and analyzes each one separately, but a series of discriminatory acts can be considered collectively in determining adverse employment action rather than "one swift blow." (See Yanowitz, supra, 36 Cal.4th at 1055-56 ["Contrary to L'Oreal's assertion that it is improper to consider collectively the alleged retaliatory acts, there is no requirement that an employer's retaliatory acts constitute one swift blow, rather than a series of subtle, yet damaging, injuries. [Citations.] Enforcing a requirement that each act separately constitute an adverse employment action would subvert the purpose and intent of the statute."]; *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 373-74 ["[T]he jury was not required to consider each individual mistreatment of a

plaintiff in isolation. The jury was entitled to, and on substantial evidence review we are required to, ‘consider collectively the alleged [discriminatory] acts. [T]here is no requirement that an employer’s [discriminatory] acts constitute one swift blow, rather than a series of subtle, yet damaging injuries.”]. Thus, Plaintiff’s claims regarding the “sham” Drake investigation and the failure to investigate her complaint against Kovac can be considered alongside the other alleged adverse claims regarding Defendants’ payment of compensatory time off in lieu of cash for overtime and Plaintiff’s assumption of additional job duties.

Moreover, Defendant fails to analyze whether Defendants’ payment of compensatory time off in lieu of cash for overtime and Plaintiff’s assumption of additional job duties are adverse employment actions. A motion for summary adjudication cannot be granted as to only a part of a cause of action.

In sum, because Defendant has analyzed each adverse action separately rather than together, and failed to analyze whether all the alleged claims can constitute adverse employment actions, the Court finds Defendant failed to meet its burden to show that there are no triable issues of material facts as to whether the series acts constituted adverse employment action.

2. Whether the Alleged Protected Activity was a Contributing Factor to the Alleged Adverse Employment Actions and Defendant’s Alleged Legitimate, Independent Reasons

Defendant argues that Plaintiff lacks evidence sufficient to prove that her alleged protected activities were a contributing factor towards any of these alleged employment actions.

Labor

Code section 1102.6 “places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee’s protected activities was a contributing factor in a contested employment action.” (Scheer v. Regents of the University of California (2022) 76 Cal.App.5th 904, 914 [original italics removed; emphasis added].)

“Once

the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity.’ [Citation.]” (Scheer, supra, 76 Cal.App.5th at p. 914 [original italics removed; emphasis added].)

Defendant argues that the Drake inquiry and investigation was triggered by Drake’s complaint, not Plaintiff’s alleged whistleblowing activities. (SSUF 8, 14-15, 22.) Defendant also argues that Plaintiff’s alleged protected activity was not a contributing factor in the Department’s handling of her complaint against Commander Kovac. (SSUF 31.) Lt. Lim’s November 20, 2022 supervisor’s inquiry memorandum makes no reference to the RIB’s fingerprint unit or Plaintiff’s alleged concerns regarding the fingerprint unit. (Exh. 10.) Instead, Defendant argues, it merely recommends allowing the pending IAB investigation to make any determination as to violations of Department policy. (Id. at 2.)

However, simply because other legitimate factors also contributed to the adverse action does not mean the protected activity was not a contributing factor. “Section 1102.6 requires whistleblower plaintiffs to show that retaliation was a ‘contributing factor’ in their termination, demotion, or other adverse action. This means plaintiffs may satisfy their burden of proving unlawful retaliation even when other, legitimate factors also contributed to the adverse action.” (Lawson v. PPG Architectural Finishes, Inc., (2022) 12 Cal. 5th 703, 713–14, [See, e.g., State Comp. Ins. Fund v. Ind. Acc. Com. (1959) 176 Cal.App.2d 10, 17, [describing a contributing factor standard as one in which the conduct at issue need not be the “exclusive cause” of the plaintiff’s injuries]; Rookaird v. BNSF Ry. Co. (9th Cir. 2018) 908 F.3d 451, 461 [“A “contributing factor” includes “any factor, which alone or in connection with other factors, tends to affect in any way the outcome of the decision””].)

Moreover, Defendant argues, more than a year elapsed between Plaintiff’s alleged

protected activity (the October 1, 2021 meeting with Chief Yanagi, et al.) and the date that Defendant decided to initiate an inquiry into Drake’s complaint (i.e., November 1, 2022). (SSUF 2, 16.) Defendant also argues the 13-month interval between Plaintiff’s October 2021 protected activity and its November

2022 handling of her complaint against Kovac evidences the lack of a causal nexus between the two events.

The court acknowledges, as Defendant argues, that “[a] long period between an employer’s adverse employment action and the employee’s earlier protected activity may lead to the inference that the two events are not causally connected.” (Wysinger v. Automobile Club of Southern California (2007) 157 Cal.App.4th 413, 421.) But Defendant did not cite authority establishing that a period of time of one year or 13 months between protected activity and an adverse employment action is a “long period” of time that creates an inference that the two events are not causally connected. (Ibid.; Arteaga v. Brink’s, Inc. (2008) 163 Cal.App.4th 327, 353 [“the temporal proximity between an employee’s [protected conduct] and a subsequent termination may satisfy the causation requirement at the first step of the burden-shifting process”] [emphasis in original].)

The Court finds that Plaintiff has shown by a preponderance of the evidence that the protected activity was a contributing factor to the adverse employment actions. Plaintiff contends that Defendants’ inquiry into Drake’s allegations was a sham in response to that activity. The Intake Specialist Unit did not find a policy of equality violation as to Drake’s complaints and did not specifically recommend a supervisory inquiry. (Defendant’s SSUF 12.) But Kovac—who had been personally investigated for misconduct by Plaintiff—nevertheless directed Lim to conduct the inquiry and participated in the only interview conducted in the process. (Defendant’s Exh. D at 5.)

Therefore, the burden shifts to Defendant to show by clear and convincing evidence that it would have taken the action in question for legitimate, independent reasons even if Plaintiff had not engaged in protected activity. ““Clear and convincing” evidence requires a finding of high probability [, or] evidence ... “so clear as to leave no substantial doubt”; ‘sufficiently strong to command the unhesitating assent of every reasonable mind.’” [Citation.]” (Katie V., supra, 130 Cal.App.4th at p. 594.)

As to the Drake inquiry and investigation,

Defendant argues that it initiated the inquiry as a direct and common-sense response to Drake's October 31, 2022 workplace complaint against Plaintiff, particularly since Drake alleged she was retaliated against in significant ways (e.g., Performance Log Entries, changing of work schedule to a less desirable schedule, suggestion of a transfer and backtracking on supporting Ms. Drake for a promotion.) (SSUF 8, 14-15, 22.) On November 10, 2022, Lt. Lim submitted his memorandum to Chief Yanagi recommending an administrative investigation, based on his review of Ms. Drake's complaint and other documentary evidence. (SSUF 14.)

However, Defendant fails to meet its burden to present clear and convincing evidence of a legitimate, independent reason for the Drake investigation. The evidence shows that Kovac sought further investigation after an Intake Specialist did not find a policy of equality violation as to Drake's complaint. Defendant provides no clear or convincing explanation or evidence as to why Kovac or Lim sought further investigation after the Intake Specialist's determination that there was no policy violated. Further, Lim also recommended a full administrative investigation be conducted. But no clear and convincing evidence is produced to explain why. Defendant simply argues, "The decision to refer conduct to a supervisory inquiry and then refer the matter for administrative investigation was based solely on legitimate reasons, i.e., the nature of Drake's allegations against Plaintiff and the need for further fact finding after the supervisory inquiry. (SSUF 6-8, 22.) Such a vague explanation cannot constitute clear and convincing evidence.

Thus, Defendant has failed to meet its burden to present clear and convincing evidence of a legitimate, independent reason for the adverse action. The Court does not need to address the remaining arguments as summary adjudication cannot be granted as to only a part of a cause of action. The motion for summary adjudication is DENIED as to the first cause of action.

Third Cause of Action for Conspiracy

Defendant argues that Plaintiff's Third Cause of Action for conspiracy alleges that Chief Yanagi, Commander Kovac, and Commander Burcher conspired to retaliate against her in violation of Labor Code section 1102.5. However, Defendant argues that Yanagi, Kovac and Burcher cannot be held liable for violation of that statute.

Section 1102.5(b) prohibits retaliation

by an “employer, or any person acting on behalf of the employer.” Defendant argues that no California court appears to have found that Section 1102.5 creates individual liability for violation of the statute. (See *Toranto v. Jaffurs*, 297 F. Supp. 3d 1073, 1105 (S.D. Cal. 2018) (noting absence of California case law).) However, nearly all federal courts that have addressed the issue “have found no individual liability.” (Id. (citing cases); see also *United States ex rel. Lupo v. Quality Assurance Servs., Inc.*, 242 F. Supp. 3d 1020, 1030 (S.D. Cal. 2017) (also citing cases.) Here, Defendant argues, it is undisputed that Plaintiff was employed by the County, not by Chief Yanagi, Commander Kovac, or

8 Commander Burcher. (SSUF 51-52.)

The Court agrees.

Individual employees or coworkers are not liable for retaliation under Labor Code section 1102.5. Only employers can be liable. While no California court has decided the issue, persuasive authority has reached this conclusion. “District Courts have reasoned that if the California Supreme Court were to address the issue, it would hold that section 1102.5 does not impose personal liability on employees and supervisors.” (*Mewawalla v. Middleman* (N.D. Cal. 2022) 601 F.Supp.3d 574, 608 [collecting cases and rejecting contrary decisions].) “In past cases, the California Supreme Court has rejected the notion that the phrase ‘[a]n employer, or any person acting on behalf of the employer’ creates individual liability.” (Id. at p. 609.) The court finds *Mewawalla* and the other cases (e.g., *Toranto v. Jaffurs* (S.D. Cal. 2018) 297 F.Supp.3d 1073, 1105; *United States ex rel. Lupo v. Quality Assurance Services, Inc.* (S.D. Cal. 2017) 242 F.Supp.3d 1020, 1030) persuasive.

Plaintiff’s arguments in opposition are unavailing.

Because Plaintiff alleges that Defendants conspired to violate Labor Code section 1102.5, which they cannot be liable for as individual employees under persuasive authority, the motion for summary adjudication is GRANTED as to the third cause of action.

Accordingly, Defendants' motion for summary judgment, or in the alternative, summary adjudication is DENIED in part and GRANTED in part. The motion for summary adjudication is granted as to the third cause of action and denied as to the first cause of action.